



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Wesley D. Bay, P.E., City Drainage Engineer

DATE: June 23, 2025

SUBJECT: Professional Service Agreement between the City of Cheyenne and GLM Design Group for the Clear Creek Inline Stormwater Detention Facility Project.

Please find the attached Professional Service Agreement between the City and GLM Design Group for engineering services for the Clear Creek Inline Stormwater Detention Facility Project.

The project is located along Clear Creek, directly upstream of the confluence of Crow and Clear creeks. The Clear Creek Drainage Basin is approximately 24 square miles and extends southwest of Cheyenne to the confluence of the creeks at Ames Underpass just south of the Union Pacific Railroad tracks. Development downstream of the UPRR has significantly altered the historical alignments of Clear Creek and Crow Creek. The historic channel within the corporate limits of Cheyenne has been filled and replaced with a small low-flow channel. The original confluence with Crow Creek was realigned in the 1930s and now exacerbates inundation and backwater issues through the Ames Avenue underpass. Within David Romero Park, the floodplain is still intact and there is an expansive area on the south and east sides of the park, along the historic alignment of the channel, that can be used for significant storage and flood relief for the Ames Avenue underpass. Storage at this location would assist in mitigating flooding in the downstream properties and backwater impacts at Ames Underpass.

Engineering Staff evaluates fee proposals for engineering services based on time and material estimates for the specific project. Those costs are readily tracked and verified during design operations and the City only pays for the actual time expended. We believe this agreement will provide the required services to complete analysis and preliminary design portion of the project.

Funding for this project will come from the 2023 1% Specific Purpose Tax Fund (5th Penny) and a Federal Emergency Management Agency (FEMA) Building Resilient Infrastructure and Communities (BRIC) grant. The total professional services will be a cost not-to-exceed \$403,742.16. We respectfully request your approval of this professional services agreement.

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT
for
Clear Creek Inline Stormwater Detention Facility

This Professional Services Agreement (“Agreement”) is made and entered into by and between the City of Cheyenne, located at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (“City”), and GLM Design Group, LLC, P.O. Box 20505, Cheyenne, Wyoming 82003 (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

This Agreement shall commence on the date the last required signature is attached hereto and shall continue in full force and effect until the scope of work is completed in accordance with Exhibit A, unless this Agreement is earlier terminated pursuant to its provisions.

3. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City, and the City agrees to pay Consultant a not to exceed amount of four hundred three thousand seven hundred forty-two dollars and sixteen cents (\$403,742.16) as stated in Exhibit A.

4. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES (49 C.F.R. Part 26)
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.
15. TERM AND TERMINATION
The term of this Agreement shall be from date of execution until the provisions of the scope of work as presented in Exhibit A have been met. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty (30) days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. SUPPLEMENTAL GENERAL CONDITIONS

In consideration of the mutual covenants and obligations herein expressed, it is further agreed by and between the parties as follows:

Standard of Care. The standard of care for all professional engineering and related services performed or furnished by Engineer under this Agreement will be the care and skill ordinarily used by members of the subject profession practicing under similar circumstances at the same time and in the same locality. The Engineer makes no warranties, express or implied, under this Agreement or otherwise, in connection with any services performed or furnished by Engineer.

Technical Accuracy. Owner shall not be responsible for discovering deficiencies in the technical accuracy of Engineer's services. Engineer shall correct deficiencies in technical accuracy without additional compensation unless such corrective action is directly attributable to deficiencies in Owner-furnished information.

Conflicts within the Agreement. If there is a conflict within this Agreement, the order of priority of the documents which make up this Agreement, from highest to lowest, will be:

- (a) Agreement.
- (b) Any supplementary conditions to the General Conditions.
- (c) General Conditions.
- (d) Schedule A – SCOPE OF SERVICES.
- (e) Other schedules to this Agreement.

Any changes in the Consultant's or Subconsultant's staff or fee structure will be presented in writing to the City for approval prior to initiating any changes or performing any work.

Overhead and Normal Business Expenses. The consultant shall include customary overhead costs and statutory benefits as part including, but not limited to, social security contributions, unemployment, excise and payroll taxes, workers' compensation, health and retirement benefits, bonuses, sick leave, vacation, and holiday pay, as applicable, within the billing rates furnished in Exhibit A. Additionally, the cost of general and administrative overhead which includes salaries and wages of employees engaged in business operations not directly chargeable to projects, plus non-Project operating costs, including but not limited to, business taxes, legal, rent, utilities, office supplies, insurance, and other operating costs shall not be directly billed to project and assumed to be included within the billing rates furnished.

Design Process Documentation. To document the design process, the consultant will be required to provide a Decision and Design Log for the project duration. This log shall be furnished to the City of Cheyenne in conjunction with the project meetings. The purpose of the log is to document and track major decisions during the design and development process. The log shall generally follow the format outlined below in Table 1. *Design and Decision Log*:

[THIS SECTION LEFT INTENTIONALLY BLANK]

Table 1. Design and Decision Log						
No.	Date	Decision	Alternatives Considered	Reasons	Decision Made By	Additional Task Required
Sequenced log number.	Date the decision was made.	A one-sentence summary of the decision made.	A list of the other approaches considered.	A two to three sentence summary of why the decision was made. A link to additional documentation, if required and [Title].	Who made this decision?	If applicable, a list of additional tasks required by the design or follow-up required.

25. ENTIRETY OF AGREEMENT

This Agreement consisting of nine (9) pages, and Exhibit A consisting of ten (10) pages, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

[SIGNATURES OF FOLLOWING PAGE]

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kylie Soden, City Clerk

Date: _____

Consultant

GLM Design Group, LLC

By: _____

Print Name: _____

Date: _____

Scope of Work

Overview

Consultant services for the Cheyenne Clear Creek Inline Stormwater Detention Facility project are the development of a design that will evaluate and identify a feasible, constructible inline storage facility within the corporate limits of Cheyenne. Any innovative solutions that are cost effective and meet project goals will be incorporated during project scoping negotiations and included in the analyses/design. The work required for this project will include project management, field surveys, hydrologic/hydraulic analysis, storm drainage and detention design, geotechnical investigations, etc.

The project requires a professional design team that includes a Civil Engineer licensed in the State of Wyoming with a minimum of 10 years of project design experience in one or more of the following areas of expertise: hydrologic/hydraulic analysis and the design of major stormwater projects; with the ability to provide in-house or capacity to sub-consult for survey and other services required for the project.

Project Description

The project is located along Clear Creek, directly upstream of the confluence of Crow and Clear creeks. The Clear Creek Drainage Basin is approximately 24 square miles and extends southwest of Cheyenne to the confluence of the creeks at Ames Underpass just south of the Union Pacific Railroad tracks. Development downstream of the UPRR has significantly altered the historical alignments of Clear Creek and Crow Creek. The historic channel within the corporate limits of Cheyenne has been filled and replaced with a small low-flow channel. The original confluence with Crow Creek was realigned in the 1930s and now exacerbates inundation and backwater issues through the Ames Avenue underpass. Within the Dave Romero Park, the floodplain is still intact and there is an expansive area on the south and east sides of the park, along the historic alignment of the channel, that can be used for significant storage and flood relief for the Ames Avenue underpass. Storage at this location would assist in mitigating flooding in the downstream properties and backwater impacts at Ames Underpass.

The selected consultant will use an iterative approach with the hydrological and hydraulic modeling of project alternative designs, resulting in design alternatives to be evaluated. This approach will lead to a cost-effective project recommendation for the community. There will be multiple alternatives considered in the scoping/design effort including natural-based solutions such as expanded floodplain functionality for Clear Creek, expanded and new wetlands within the drainage basin, and new detention/bio-retention features to enhance the overall functionality of the creek while providing much-needed flood control for our community. The existing connection to Crow Creek and impacts with the proposed detention area(s) will also be evaluated for larger storm events. This proposed project is intended to explore mitigation of flood events from Crow Creek that can be incorporated into the design to the extent practical. This approach will result in cost-effective and feasible mitigation measures that meet FEMA's objectives of utilizing nature-based solutions and addressing both climate change and future conditions in the basin. Any additional value engineering recommendations that evolve during the scoping process will be given consideration by City staff.

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Clear Creek Inline Stormwater Detention Facility (RLFP 3-25)**

Project Tasks and Deliverables

At a minimum, the following tasks will be included in the analysis and design of the project:

- 1) Field Surveys and Reconnaissance for collection and evaluation of pertinent data needed for hydraulic modeling of design alternatives including conveyance pipes for a realignment of the Clear Creek confluence with Crow Creek.
- 2) Identify existing utilities and adjust or relocate if necessary.
- 3) Digital topographic data development for use in hydraulic and geotechnical modeling efforts.
- 4) The development of a working hydraulic model to evaluate and design alternative storage areas and conveyance pipes using a reach specific model. The model will incorporate non-proprietary computer modelling such as the Environmental Protection Agency SWMM model, USACE HEC-HMS, and/or the USACE's HEC-RAS model into the design and provide review copies with the project deliverables. The consultant will supplement these models with a specific culvert analysis model as necessary. The underlying hydrologic input will initially be taken from the current effective regulatory hydrologic models. The consultant will provide recommendations for a corrected effective model, or a full replacement hydrological model for Clear Creek with the scope of the project.
- 5) Preparation of Cost Estimates/BCA Development per FEMA guidelines. The consultant will conduct BCA's of each alternative hydraulic analysis and potential mitigation strategies to ensure the constructability and cost-effectiveness of the recommended strategy.
- 6) The evaluation and design of a detention storage facility (or multiple facilities working together) to provide flood relief for both the Ames Avenue underpass and downstream residential properties located in the historic flow path of Clear Creek that has been inundated with larger flood events.
- 7) Preparation of construction plans, special provisions to the standard specifications, and engineer's estimates for construction cost for the preferred alternative.
- 8) Complete a FEMA CLOMR/LOMR for changes to the floodplain and FIRM. Finalization of the LOMR can be completed after the FEMA period of performance ends.
- 9) Update the City/County floodplain mapping.

Project Funding and Timing

The city has \$350k of funding available for the project. A portion of funds will be from a FEMA Building Resilient Infrastructure and Communities (BRIC) grant and the remaining portion will be from the 1% optional sales tax (5th Penny).

The grant period of performance expires August 31, 2026.

General Conditions

The following items are included as part of the basic compensation for this project:

- Normal business expenses - phone, postage, etc.
- Cost of insurance.
- In-house computer time and service.
- Word processing, accounting, and man-hour records.
- Permits and license fees.

PROFESSIONAL SERVICES AGREEMENT

Project Name: **Clear Creek Inline Stormwater Detention Facility (RLFP 3-25)**

- Mileage.
- Travel fees, room and board, per diem.
- Printing costs for all standard review, bidding, and as-constructed plans and other correspondence and contract documents.
- Film and processing.

Additional items which will be addressed:

All subconsultant fees at cost, which may include:

- Geotechnical Investigation.
- Surveying (boundary, topographic, utility).
- Utility investigation.
- FEMA Data Requests for Effective Models
- CLOMR and LOMR Application Fees (FEMA)

Other items:

- Overtime engineering and inspection.
- Special inspections, including vacuum excavation pot-holing.
- Survey materials, stakes, etc.
- Additional required services.

Any changes in the Consultant's or Subconsultant's staff or fee structure will be presented in writing to the City for approval prior to initiating any changes or performing any work.

May 6, 2025

City of Cheyenne | Purchasing Office
Attention: TJ Barttelbort, CPM - Purchasing Manager
2101 O'Neil Avenue, Rm. 309, Cheyenne, WY 82001
307.773.1045 | tbarttelbort@cheyennecity.org

**RE: Price Proposal for Clear Creek Inline Stormwater Detention Facility City of Cheyenne, Wyoming |
RFLP 3-25**

Dear Members of the Selection Committee,

The GLM Design Group Team is pleased to present you with our price proposal to provide our professional services for analytical and design engineering of the Clear Creek Inline Stormwater Detention Facility project on behalf of the City of Cheyenne. If selected, our Project Team consists of the following firms:

GLM Design Group – Water Resources Engineering, Benefit-Cost Analysis, Grant Strategy/Funding
Gene MacDonald, PE; Steven Pardue, MCP

ICON Engineering – Hydraulic Modeling, River Restoration Design, Floodplain Mapping
Jaclyn Michaelsen, PE, Shuangshuang Fan, EI

DHM Design– Park Design, Wetland Design
Matthew Whipple

RockSol Consulting Group – Geotechnical Engineering Support
Tim Tuttle, PE, Jacob Sphatt, PE

BenchMark Engineers – Topographic and Riverine Surveying, Utility Locates
Will Morrow

We have endeavored to assemble a team of qualified professionals uniquely experienced in H&H modeling, hydraulic structures design, constructed wetland design, Benefit-Cost Analyses and project grant submittals, and floodplain mapping. GLM Design Group, with assistance from Ms. Jackie Michaelsen of ICON Engineering, have had extensive experience in hydrologic and hydraulic modeling and can recommend the most appropriate, cost-effective confluence location to staff immediately. We are well positioned to develop a thorough BCA for alternative project designs and have experienced staff to develop a project grant application. It is not a given that the Clear Creek project will have a Benefit-Cost Ratio (BCR) eligible under the federal Stafford Act for federal funding through the FEMA FMA Program, however, we will investigate every opportunity within the FEMA BCA software tool to arrive at an eligible BCR. We will also identify other funding opportunities for funding project construction.

Attached with our price proposal letter is a complete line-item budget for all tasks of the work listed in Exhibit B – Compensation Schedule, of the Scope of Work, with a breakdown of each phase, as necessary to complete the Project as specified in this RLFP, its attachments, and other documents referenced. Our budget includes billing rates for GLM Design Group, ICON Engineering, and DHM Design. Line-item budget estimates for GLM's subconsultant, RockSol is shown in the aggregate. Billing rates for RockSol will be provided upon request.

Our Design Team can provide the city with a seamless design effort that provides flood control relief for both the Clear Creek and Crow Creek drainages as well as creation of riparian and wetland habitat and enhancement of Dave Romero Park. **Our proposed approach for the Clear Creek Detention Facility will provide an incredible aesthetic backdrop for the park and a welcome addition to the adjacent neighborhoods.**



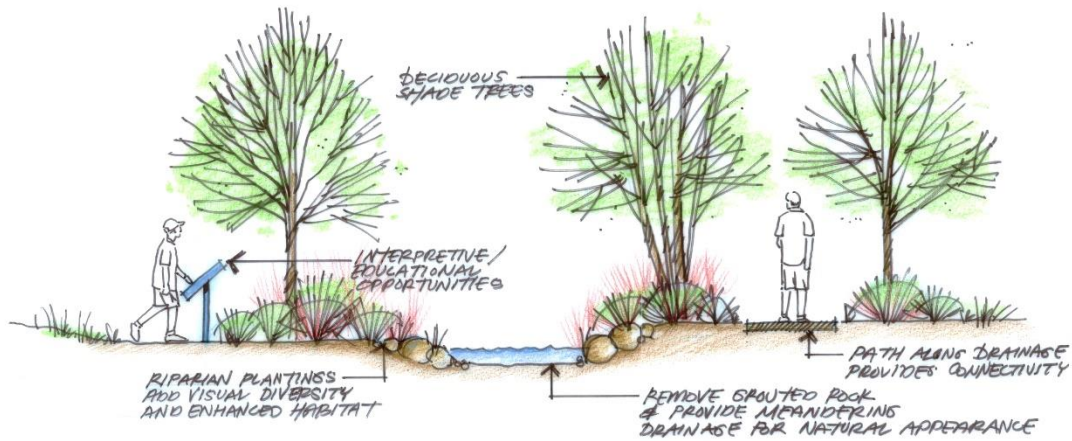
Our proposed budget includes the following categories:

• Kick-Off Meetings, Progress Meetings with Staff, Coordination with City Parks Dept.	Estimated Cost:	\$11,414.00
• Task 1: Field Surveys & Reconnaissance	Estimated Cost:	\$18,392.00
• Task 2: Utility Locates	Estimated Cost:	\$ 4,944.00
• Task 3: Topographic Map Development	Estimated Cost:	\$ 3,864.00
• Task 4: Development of Working Hydraulic Model	Estimated Cost:	\$84,930.16
• Task 5: Benefit-Cost Analysis	Estimated Cost:	\$31,782.00
• Task 6: Design of a Detention Storage Facility	Estimated Cost:	\$84,004.00
• Task 7: Preparation of Construction Documents	Estimated Cost:	\$61,638.00
• Task 8: Completion of CLOMR/LOMR	Estimated Cost:	\$71,358.00
• Task 9: Update of City/County Delineated Floodplain	Estimated Cost:	\$ 9,072.00
• Expenses	Estimated Cost:	\$ 3,900.00
Crow Creek Channel Design		\$18,444.00
Estimated Total Budget:		\$403,742.016

Our estimated budget is slightly higher than the \$350,00.00 of funding available referenced in the RFLP. This accounts for the addition of DHM Design to assist our Team in providing a detention/wetland facility that enhances Dave Romero Park. We are happy to meet with staff to discuss a reduction of our proposed scope. I believe that you will find our Design Team well qualified to provide a thoughtful, cost-effective design for the Clear Creek project.

Sincerely,
GLM Design Group





Estimated Design Fee

COMPENSATION SCHEDULE

The Consultant shall prepare and submit proposed estimated compensation, bearing in mind that it should be a unit-based contract with a negotiated not-to-exceed amount. A Payment Schedule based upon the following and any other pertinent payment schedule shall be submitted with payment for a specific phase not exceeding the scheduled amount prior to completion of that phase:

Data Gathering	\$	<u>18,392.00</u>
Alternatives Analysis	\$	<u>31,150.00</u>
Benefit Cost Analysis	\$	<u>31,782.00</u>
Preliminary Plans	\$	<u>84,930.16</u>
60% Plans	\$	<u>84,004.00</u>
90% Plans	\$	<u>61,638.00</u>
Final Plans	\$	<u>73,402.00</u>
Crow Creek Channel Design		\$18,444.00
Total Contract Amount	\$	<u>\$403,742.016</u>

Include this page as a part of the:
CLEAR CREEK INLINE STORMWATER DETENTION FACILITY – PRICE PROPOSAL submission.

- **FINAL PLANS INCLUDES CLOMR/LOMR**
- **REFER TO ATTACHED DETAILED TASK BASED FEE FOR MORE ACCURATE COMPENSATION ACCOUNTING**

Price Proposal for Clear Creek Inline Stormwater Detention Facility City of Cheyenne, Wyoming | RFLP 3-25

Project Task and/or Subtask	Project Task or Subtask Description	GLM Design			ICON Engineering		DHM Design		RockSol	Labor Costs	Administrative	Total Cost
		GLM Design Group	GLM Design / Steve Pardue	GLM / Survey Will Morrow (BenchMark)	Jaclyn Michaelson	Shuang Suang	Mathew Whipple	DHM Staff	RockSol Staff			
	Estimated Rates per Hour	\$168	\$175	\$105	\$210	\$165	\$175	\$105			\$75	
1	Kick-Off Meetings, Progress Meetings with City Staff, Preliminary Coordination with City Parks Dept.									\$10,514.00	\$900.00	\$11,414.00
A	Assume (1) Kick-Off Meeting and (14) Progress Meetings	15.00			15.00		12.00			\$7,770.00	8.00	\$8,370.00
B	Assume (6) Meetings with Parks Dept. for Preliminary Design Coordination & (2) Meetings with GIS Office	8.00					8.00			\$2,744.00	4.00	\$3,044.00
Task 1: Field Surveys and Reconnaissance												
2	Information Review and Topographic Survey									\$18,242.00	\$150.00	\$18,392.00
A	Data Collection, Field Surveys, and Reconnaissance needed for H&H Modeling	16.00		60.00	4.00	8.00	4.00		\$6,394.00	\$18,242.00	2.00	\$18,392.00
Task 2: Utility Locates												
3	Locate and Map Existing Utilities within the Project Area									\$4,944.00	\$0.00	\$4,944.00
A	BenchMark to Identify and Map Existing Utilities within the Project Area	8.00		24.00		4.00		4.00		\$4,944.00		\$4,944.00
Task 3: Topographic Map Development												
4	BenchMark in Collaboration with ICON will Develop Topo in Support of H&H and Geotech									\$3,864.00	\$0.00	\$3,864.00
A	Topographic Mapping	8.00		24.00						\$3,864.00		\$3,864.00
Task 4: Development of Working Hydraulic Model												
5	Hydraulic Model Development									\$84,630.16	\$300.00	\$84,930.16
A	Develop EPA Clear Creek SWMM Model for input into HEC-RAS Model and QA/QC for Model Stability. Geotechnical Engineering Analysis.	88.00			88.00	24.00	8.00		\$12,142.16	\$50,766.16	2.00	\$50,916.16
B	Development of HEC-RAS Model	88.00			72.00	24.00				\$33,864.00	2.00	\$34,014.00
Task 6: Design of a Detention Storage Facility												
6	Design of Detention Storage									\$83,704.00	\$300.00	\$84,004.00
A	Analysis and Design of Detention Alternatives Preferred Design	60.00			48.00	8.00	40.00	24.00		\$31,000.00	2.00	\$31,150.00
C	Use FWHY HY-8 Software to Calibrate Culvert Rating Curves for both Existing 72-inch and New Confluence	8.00			16.00	16.00				\$7,344.00		\$7,344.00
D	Bioretention and Wetland Design	60.00			24.00		120.00	88.00		\$45,360.00	2.00	\$45,660.00
Task 5: Benefit-Cost Analysis												
7	Conceptual Alternatives Development with Cost Estimates and BCAs									\$31,332.00	\$450.00	\$31,782.00
A	Benefit-Cost Analyses of Detention/Wetland Alternatives	60.00	48.00							\$18,480.00	2.00	\$18,480.00
B	EHP Evaluation, Coordination with city staff	24.00								\$4,032.00	2.00	\$4,182.00
C	Preparation of BCA Report	40.00	12.00							\$8,820.00	2.00	\$9,120.00
Task 7: Preparation of Construction Documents												
8	Conceptual Alternatives Development with Cost Estimates and BCAs									\$61,488.00	\$150.00	\$61,638.00
A	Quality Control / Quality Assurance (QA/QC) Compliance with City Standards and Specifications	16.00			8.00		8.00	16.00		\$7,448.00		\$7,448.00
B	Preparation of Project CDs and Final Engineer's Estimate	60.00			40.00		60.00	28.00		\$31,920.00	2.00	\$32,070.00
C	Project Team Meetings / Coordination with DHM and ICON	40.00			40.00		40.00			\$22,120.00		\$22,120.00
Task 8: Completion of CLOMR/LOMR for the Project												
9	CLOMR/LOMR									\$71,208.00	\$150.00	\$71,358.00
A	Preparation of CLOMR for Project Design	88.00			60.00	40.00				\$33,984.00		\$33,984.00
B	Preparation of LOMR for Project As-Builts *	88.00			88.00	24.00				\$37,224.00	2.00	\$37,374.00

Task 9: Update of City/County Delineated Floodplain

10	Update of City/County Delineated Floodplain Mapping									\$9,072.00	\$0.00	\$9,072.00
A	Our Proposed Project Design will Eliminate the City/County floodplain between the BNSF and the Historic Confluence with Crow Creek	24.00			24.00					\$9,072.00		\$9,072.00

Expenses

7	Travel, Meals, Lodging, and Mileage					\$1,250	\$1,250.00		\$1,250.00	\$3,750.00	2.00	\$3,900.00
		799.00	60.00	108.00	527.00	148.00	300.00	160.00	\$18,536.16	\$382,748.16	34.00	\$385,298.16
		#####	\$10,500.00	\$11,340.00	#####	\$24,420.00	\$52,500.00	\$16,800.00	\$18,536.16	\$378,998.16	\$2,550.00	\$385,298.16

Price Proposal for Dredging Design for Ames Underpass Reach of Crow Creek, City of Cheyenne, Wyoming | RFLP 3-25

Project Task and/or Subtask	Project Task or Subtask Description	GLM Design			ICON Engineering		DHM Design		RockSol	Labor Costs	Administrative	Total Cost
		GLM Design Group	GLM Design / Steve Pardue	GLM / Survey Will Morrow (BenchMark)	Jaclyn Michaelisen	Shuang Suang	Mathew Whipple	DHM Staff	RockSol Staff			
	Estimated Rates per Hour	\$168	\$175	\$105	\$210	\$165	\$175	\$105			\$75	
Task 1: Field Surveys and Reconnaissance												
1	Information Review and Topographic Survey									\$4,704.00	\$150.00	\$4,854.00
A	Data Collection, Riverine Survey, and Reconnaissance needed for H&H Modeling	8.00		24.00	4.00					\$4,704.00	2.00	\$4,854.00
Task 2: Utility Locates												
2	Locate and Map Existing Utilities within the Project Area									\$588.00	\$0.00	\$588.00
A	BenchMark to Identify and Map Existing Waterline and any UPRR Utilities within the Project Corridor	1.00		4.00						\$588.00		\$588.00
Task 3: Riverine Map Development												
3	BenchMark in Collaboration with ICON will Develop Riverine Cross Sections									\$1,512.00	\$0.00	\$1,512.00
A	Riverine Cross Sections	4.00		8.00						\$1,512.00		\$1,512.00
Task 4: Development of Working Hydraulic Model												
4	Hydraulic Model Development									\$5,664.00	\$150.00	\$5,814.00
A	Develop Hydraulic Model for Ames Underpass Reach	8.00			8.00	16.00				\$5,664.00	2.00	\$5,814.00
Task 5: Design in Support of Creek Dredging												
5	Design of Dredging Extents through Ames Underpass Reach									\$5,526.00	\$150.00	\$5,676.00
A	Dredging Design	8.00			8.00	4.00				\$3,684.00	2.00	\$3,834.00
B	Preparation of Bid Documents for Dredging Project	4.00			4.00	2.00				\$1,842.00		\$1,842.00
		33	0	36	24	22	0	0	0	\$17,994.00	6.00	\$18,444.00
		\$5,544.00	\$0.00	\$3,780.00	\$5,040.00	\$3,630.00	\$0.00	\$0.00	\$0.00	\$17,994.00	\$450.00	\$18,444.00